

IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA

DEEPGULF, INC. and
TOKE OIL AND GAS, S.A.,

Plaintiffs,

Case No.: 2018 CA 000543

vs.

Division: E

MARC M. MOSZKOWSKI,

Defendant.

_____ /

FINAL JUDGMENT

This matter came before the Court for a bench trial on June 17, 2025. Rustin Howard appeared as the corporate representative of Plaintiffs DeepGulf, Inc. ("DeepGulf") and Toke Oil and Gas, S.A. ("Toke"), and Braden K. Ball, Jr. appeared as counsel for Plaintiffs. Defendant Marc M. Moszkowski ("Moszkowski") did not appear. A default was previously entered against Defendant on June 12, 2025, and his pleadings, including his Counterclaim and Affirmative Defenses, were stricken. The Court, having considered the testimony and evidence presented, including the testimony of Rustin Howard, the exhibits admitted, the First Amended Complaint, applicable Florida statutes, and case law, hereby enters this Final Judgment.

FINDINGS OF FACT¹

1. **Formation of DeepGulf and Meeting of the Parties:** DeepGulf, Inc., is a Florida corporation with its principal place of business in Escambia County, Florida, engaged in energy transportation, including handling and transportation of hydrocarbons in pipelines. (Rustin Howard Trial Testimony; Plaintiffs' Exhibits 2 and 3). Toke Oil and Gas, S.A. is presently a wholly owned subsidiary of DeepGulf, domiciled in Timor Leste (Rustin Howard Trial Testimony). Rustin Howard, Chairman of the Board of DeepGulf and Toke, met Marc Moszkowski through a mutual friend who informed Howard that Moszkowski had an invention but lacked the expertise to commercialize it

¹ The comments in the parentheses identify the source of the finding.

(Rustin Howard Trial Testimony). After discussions, including a visit hosted by Moszkowski in Provence, France, they agreed to form DeepGulf based on Moszkowski's patented J-Lay system technology, designed to lay large pipelines in ultra-deep water (Rustin Howard Trial Testimony). Both Howard and Moszkowski signed a Noncompetition, Nondisclosure, and Developments Agreement on September 15, 2005, to protect DeepGulf's interests. (Rustin Howard Trial Testimony; Plaintiffs' Exhibit 1).

2. **Breach of Non-Competition Agreement (Count 2):** Moszkowski, as an officer and director of DeepGulf, was bound by the Noncompetition, Nondisclosure, and Developments Agreement. The agreement prohibited him from competing with DeepGulf, soliciting its customers, or using its confidential information for personal gain during and for one year after termination of his business relationship with DeepGulf. (Plaintiffs' Exhibit 1). Howard testified that Moszkowski expressed intent to leave DeepGulf, establish a competing company, and use DeepGulf's technology for personal benefit, in violation of the agreement (Rustin Howard Trial Testimony).

3. **Civil Theft- \$345,000 (Count 3):** On September 10, 2007, DeepGulf received an inquiry about using its patented J-Flex Pipelay system for a project in East Timor. (Rustin Howard Trial Testimony). Howard passed this inquiry to Moszkowski, who traveled to East Timor on October 15, 2007, to investigate the opportunity on DeepGulf's behalf. (Rustin Howard Trial Testimony). Instead of establishing Toke as a subsidiary of DeepGulf, Moszkowski made himself an owner with 30,000 shares (33%) of Toke, alongside VoGue Lda and Hali Group S.A., without DeepGulf's authorization (Rustin Howard Trial Testimony). Moszkowski misrepresented to DeepGulf, Inc. that governmental regulations prevented DeepGulf from holding Toke directly, when no such prohibition existed. (Rustin Howard Trial Testimony). From 2010 to 2011, Moszkowski caused Toke to pay him \$345,000 in "Director Salaries" without DeepGulf's Board approval, which Howard did not discover until October 2017 through conversations with Bill Lott. (Rustin Howard Trial Testimony). An email dated November 29, 2017, from Moszkowski to Lott confirmed Moszkowski's intent to hide these

payments from Howard, stating they were “for your eyes only” and meant to make Howard “sweat.” (Trial Testimony of Rustin Howard; Plaintiffs’ Exhibit 16).

4. **Civil Theft- \$959,764.22 (Count 4):** Plaintiffs failed to prove by clear and convincing evidence that the \$959,764.22 distributed to Toke shareholders constituted civil theft under Florida Statutes §772.11 as the evidence did not sufficiently establish Moszkowski’s intent to deprive DeepGulf of these funds.

5. **Conversion (Counts 5 and 6):** Moszkowski’s unauthorized distribution of \$345,000 to himself and \$959,764.22 to Toke shareholders (VoGue Lda., Hali Group S.A., and himself) as “Director Salaries” constituted an exercise of ownership inconsistent with DeepGulf’s rights. (Rustin Howard Trial Testimony; Plaintiffs’ Exhibits 15 and 17). These funds were profits from Toke’s three contracts, totaling \$14.9 million, which should have benefited DeepGulf as Toke’s parent company. (Rustin Howard Trial Testimony). Howard testified that no Toke or DeepGulf Board approval existed for these payments, and Moszkowski refused to provide Toke’s financial records. (Rustin Howard Trial Testimony).

6. **Fraudulent Misrepresentation (Count 7):** Moszkowski provided false information for a Private Placement Memorandum (PPM) drafted by Howard on August 6, 2012, exaggerating DeepGulf’s revenues and misrepresenting its relationship with East Timor’s government. (Rustin Howard Trial Testimony; Plaintiffs’ Exhibit 9). Howard relied solely on Moszkowski’s information, as Moszkowski prohibited him from contacting East Timor clients or officials (Rustin Howard Trial Testimony). These misrepresentations induced investments in DeepGulf and concealed Toke’s true ownership and financial status (Rustin Howard Trial Testimony).

7. **Declaratory Relief (Count 8):** Moszkowski’s conflicting assertions about Toke’s ownership—initially claiming he held Toke shares for DeepGulf’s benefit, later denying DeepGulf’s ownership—created uncertainty. (Rustin Howard Trial Testimony). DeepGulf acquired 33% of Toke’s shares from Vincente Ximenes on August 12, 2010, and an additional 66% from Ximenes and

Moszkowski on May 25, 2012, making DeepGulf the sole owner of Toke. (Rustin Howard Trial Testimony).

8. **Accounting (Count 9):** Moszkowski's fiduciary duty as an officer and director required him to account for Toke's transactions (Rustin Howard Trial Testimony). His refusal to provide records necessitates a detailed accounting to determine the extent of misappropriated funds. (Rustin Howard Trial Testimony).

9. **Breach of Contract (Count 10):** Moszkowski's acceptance of \$345,000 from Toke while serving as a DeepGulf officer breached the noncompetition clause of the Agreement, which prohibited working for or benefiting from competing entities. (Rustin Howard Trial Testimony; Plaintiffs' Exhibit 1).

10. **Injunctive Relief (Count 11):** Moszkowski retains exclusive control over DeepGulf's domain names (e.g., www.deepgulf.net, www.deepgulf.com, www.deep-gulf.net, www.deep-gulf.com, <http://pipepredictor.com>), passwords, and electronic data, which are critical to DeepGulf's operations. (Rustin Howard Trial Testimony). His refusal to turn over these assets violates the Agreement's provisions on company property. (Rustin Howard Trial Testimony).

CONCLUSIONS OF LAW

1. **Jurisdiction and Venue:** This Court has jurisdiction over the parties and subject matter pursuant to Florida Statutes and the Noncompetition, Nondisclosure, and Developments Agreement, which designates Florida law and venue in Florida courts. Venue is proper in Escambia County, Florida, where DeepGulf's principal place of business is located.

2. **Count 1 - Injunctive Relief (Intellectual Property and Developments):** Previously adjudicated in favor of Plaintiffs on March 12, 2025, pursuant to the Court's Order Granting in Part and Denying in Part Plaintiffs' Motion for Summary Judgment.

3. **Count 2 - Breach of Non-Competition Agreement:** Moszkowski breached the Noncompetition, Nondisclosure, and Developments Agreement by withholding DeepGulf's

technology from the Board of Directors of DeepGulf. Plaintiffs proved by the greater weight of the evidence that Moszkowski violated Paragraphs 1, 2, and 5 of the Agreement.

4. **Count 3 - Civil Theft (\$345,000):** Moszkowski's unauthorized payment of \$345,000 to himself from Toke constitutes civil theft under Florida Statutes § 772.11, proven by clear and convincing evidence. (Plaintiffs' Exhibit 13).

5. **Count 4 – Civil Theft (\$959,764.22):** Plaintiffs failed to meet the clear and convincing evidence standard required by Florida Statutes §772.11 for the \$959,764.22 claim and no relief is granted.

6. **Counts 5 and 6 - Conversion:** Moszkowski's unauthorized distribution of \$345,000 and \$959,764.22 constitutes conversion, as he exercised ownership over DeepGulf's property inconsistent with its rights.

7. **Count 7 - Fraudulent Misrepresentation:** Moszkowski's false representations in the PPM and to DeepGulf's Board regarding Toke's ownership and project revenues constitute fraudulent misrepresentation, proven by the greater weight of the evidence.

8. **Count 8 - Declaratory Relief:** DeepGulf is the sole owner of Toke Oil and Gas, S.A., having acquired all shares by May 25, 2012. Moszkowski's assertions to the contrary are without merit.

9. **Count 9 - Accounting:** Moszkowski's fiduciary duty as an officer and director requires him to provide a detailed accounting of Toke's transactions.

10. **Count 10 - Breach of Contract:** Moszkowski's acceptance of \$345,000 from Toke breached the noncompetition clause of the Agreement.

11. **Count 11 - Injunctive Relief:** Moszkowski's retention of DeepGulf's domain names, passwords, and electronic data violates the Agreement.

12. **Counterclaims:** The Defendant's counterclaims were previously stricken.

ORDER

Based on the foregoing findings of fact and conclusions of law, it is **ORDERED AND ADJUDGED** as follows:

1. Judgment is entered in favor of Plaintiffs DeepGulf, Inc. and Toke Oil and Gas, S.A. on Counts 1, 2, 3, 5, 6, 7, 8, 9, 10, and 11 of the First Amended Complaint.

2. On **Count 1**, Judgment is entered in favor of Plaintiffs on Count 1 of the Complaint, and the Court declares that Plaintiff, DeepGulf, Inc., owns the following intellectual properties: United States Patent number: 9644792; United State Patent number: 8146667; United States Patent Publication number: 201200014751; United States Patent Publication number: 20120012225; United States Paten Publication number: 20060130729; and any and all undisclosed inventions and/or patentable ideas or methods conceived by Defendant beginning on September 15, 2005, through the date of this Judgment. Defendant shall not use these intellectual properties for his personal gain without DeepGulf's express consent.

3. On **Count 2**, Judgment is entered in favor of Plaintiffs. Defendant Moszkowski shall return all software, hardware, intellectual property, including customer lists, and other information to DeepGulf within **30 days** of the entry of this Final Judgment.

4. On **Count 3**, Judgment is entered in favor of Plaintiffs. Defendant Moszkowski is liable for civil theft in the amount of \$345,000, with treble damages of \$1,035,000 awarded to Plaintiffs. Prejudgment interest in the amount of \$290,461.73 is awarded to Plaintiffs. Prejudgment interest is only awarded on the \$345,000 amount. Defendant, Marc Moszkowski is indebted to Plaintiff DeepGulf, Inc. in the amount of \$1,325,461.73, which shall bear interest at the rate of 8.90% for which let execution issue. The Court reserves jurisdiction to determine attorney's fees and costs for this count.

5. On **Count 4**, Judgment is entered in favor of Defendant Moszkowski, as Plaintiffs failed to prove civil theft by clear and convincing evidence.

6. On **Counts 5 and 6**, Judgment is entered in favor of Plaintiff. The Court reserves jurisdiction to determine damages for conversion pending the accounting ordered under Count 9.

7. On **Count 7**, Judgment is entered in favor of Plaintiff. The Court reserves jurisdiction to determine damages for fraudulent misrepresentation pending the accounting ordered under Count 9.

8. On **Count 8**, Judgment is entered in favor of Plaintiff and the Court declares that DeepGulf, Inc. is the sole owner of Toke Oil and Gas, S.A.

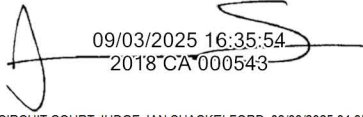
9. On **Count 9**, Judgment is entered in favor of Plaintiff and Defendant Moszkowski shall provide a detailed accounting of all Toke Oil and Gas, S.A. transactions, with specificity, within **60 days** of the entry of this Final Judgment.

10. On **Count 10**, Judgment is entered in favor of Plaintiff for breach of contract, which is an alternative claim to Count 3 with no additional damages awarded.

11. On **Count 11**, Judgment is entered in favor of Plaintiff. Defendant Moszkowski shall release and turn over all domain names, passwords, and electronic data and information owned by DeepGulf, including but not limited to www.deepgulf.net, www.deep-gulf.net, www.deepgulf.com, www.deep-gulf.com, and <http://pipepredictor.com>, within **10 days** of the entry of this Final Judgment. Should Marc Moszkowski fail to timely effect the transfer of the Domain Names to DeepGulf, Inc. c/o Rustin Howard, then the applicable registrar shall transfer the Domain Names to DeepGulf, Inc. c/o Rustin Howard, or the applicable registry shall change the registrar of record of the Domain Names to a registrar designated by DeepGulf, Inc. c/o Rustin Howard, for transfer to DeepGulf, Inc.'s account c/o Rustin Howard. The registrant of record for and control of each of the Domain Names shall be immediately updated by Marc Moszkowski's registrar, or the applicable registrar or registry, to reflect DeepGulf, Inc. c/o Rustin Howard as the registrant of record.

12. The Court reserves jurisdiction to enforce this Judgment, determine damages for Counts 5, 6, and 7, and award attorney's fees and costs for Count 3.

DONE AND ORDERED in Chambers at Pensacola, Escambia County, Florida.

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signed by CIRCUIT COURT JUDGE JAN SHACKELFORD 09/03/2025 04:35:54 vGoNcNo5

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